

Contentious Chamber

Decision on the merits 170/2024 of December 19, 2024

File number: DOS-2020-04988

Subject: Complaint against Google following the refusal to delist a large number of links from its search engine

The Contentious Chamber of the Data Protection Authority, composed of Mr. Hielke Hijmans, president, sitting alone;

Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter referred to as "GDPR";

Considering the Law of December 3, 2017, establishing the Data Protection Authority¹ (hereinafter "LCA");

Considering the internal regulations as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents in the file;

1 The DPA reminds that the revised organic law came into force on 01/06/2024. It only applies to complaints, mediation files, requests, inspections, and procedures before the Contentious Chamber initiated from that date. Files initiated before 01/06/2024, such as the present file, are subject to the provisions of the previous version of the LCA accessible here:

<https://www.autoriteprotectiondonnees.be/publications/loi-organique-de-l-apd.pdf>

2 The new internal regulations of the DPA, following the amendments made by the Law of December 25, 2023, amending the Law of December 3, 2017, establishing the Data Protection Authority (LCA), came into force on 01/06/2024. It only applies to complaints, mediation files, requests, inspections, and procedures before the Contentious Chamber initiated from that date. Files initiated before 01/06/2024 are subject to the provisions of the internal regulations as they existed before that date.

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Has made the following decision regarding:

The complainant:

X, represented by Me Miguel Mairlot whose office is located at Avenue Louise 200, 1050 Brussels, hereinafter referred to as "the complainant";

The defendant: Google LLC, 1600 Amphitheatre Parkway Mountain View, CA94043, California (United States of America), represented by Me Gerrit Vandendriessche, Jan Clinck, and Pierre Antoine, whose office is located at Tour & Taxis Building, Avenue du Port 86C 8414 / BE-1000 Brussels, hereinafter referred to as "the defendant".

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I. Facts and procedure

1. The complainant filed five distinct complaints with the Data Protection Authority (hereinafter "DPA"), registered under the numbers DOS-2020-04988, DOS-2021-01266, DOS-2021-01699, DOS-2021-05920, and DOS-2021-05175.

2. These complaints were filed by the complainant following the defendant's refusal to delist the links listed below, in points 3 to 6 and 45, from the results of the Google Search engine (hereinafter "disputed URLs," "disputed content," or "links"). These links, which appear from a search conducted using the complainant's name, relay allegations of corruption, money laundering, and other fraudulent practices targeting the complainant and/or company Z, [...].

3. The first complaint, DOS-2020-04988, filed on October 24, 2020, was declared admissible by the DPA's First Line Service (SPL) and transmitted to the Contentious Chamber on November 5, 2020. It

concerns the following links:

- 1.1. [...]
- 1.2. [...]
- 1.3. [...]
- 1.4. [...]
- 1.5. [...]
- 1.6. [...]

4. The second complaint, DOS-2021-01266, filed on February 25, 2021, was declared admissible by the SPL and transmitted to the Contentious Chamber on March 10, 2021. It concerns the following links:

- 2.1. [...]
- 2.2. [...]
- 2.3. [...]
- 2.4. [...]
- 2.5. [...]
- 2.6. [...]
- 2.7. [...]
- 2.8. [...]
- 2.9. [...]

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- 2.10. [...]
- 2.11. [...]
- 2.12. [...]
- 2.13. [...]
- 2.14. [...]
- 2.15. [...]
- 2.16. [...]
- 2.17. [...]
- 2.18. [...]
- 2.19. [...]
- 2.20. [...]
- 2.21. [...]
- 2.22. [...]
- 2.23. [...]
- 2.24. [...]
- 2.25. [...]
- 2.26. [...]
- 2.27. [...]
- 2.28. [...]
- 2.29. [...]
- 2.30. [...]
- 2.31. [...]

5. The third complaint, DOS-2021-01699, filed on March 19, 2021, was declared admissible by the SPL and transmitted to the Contentious Chamber on March 30, 2021. It concerns the following links:

- 3.1. [...]
- 3.2. [...]
- 3.3. [...]

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- 3.4. [...]
- 3.5. [...]

- 3.6. [...]
- 3.7. [...]
- 3.8. [...]
- 3.9. [...]
- 3.10. [...]
- 3.11. [...]
- 3.12. [...]
- 3.13. [...]
- 3.14. [...]
- 3.15. [...]
- 3.16. [...]
- 3.17. [...]
- 3.18. [...]
- 3.19. [...]

6. The fourth complaint, DOS-2021-05920, filed on August 20, 2021, was declared admissible by the SPL and transmitted to the Contentious Chamber on January 5, 2022. It concerns the following links:

- 4.1. [...]
- 4.2. [...]
- 4.3. [...]
- 4.4. [...]
- 4.5. [...]
- 4.6. [...]
- 4.7. [...]

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7. The complaints in this case have been declared admissible by the First Line Service based on Articles 58 and 60 of the LCA and forwarded to the Contentious Chamber pursuant to Article 62, § 1 of the LCA.

8. On March 14, 2023, the Contentious Chamber sent a letter to the parties in which it communicated several pieces of information. First, it decided to join the complaints that it considers to be linked by such a close relationship that there is an interest in processing them and making a decision regarding them at the same time in order to ensure the consistency of its decisions. In other words, the objective of consistency that it pursues in the handling of the complaints submitted to it opposes their separate examination. The various files are therefore joined under DOS-2020-04988. It then indicated that the position of the defendant developed in its responses to the various requests from the complainant is too brief for the Contentious Chamber to proceed with a correct assessment of its arguments in light of Article 17.3.a) of the GDPR. The complainant's position, on the other hand, is sufficiently developed, both in its requests to the defendant and in its complaints. The Contentious Chamber therefore requests the defendant to kindly justify the reasons why it believes that Article 17.3.a) of the GDPR applies to the URLs for which it refused delisting. It requests the defendant to submit its response by Monday, April 24, 2023.

9. On March 20, 2023, the defendant requested a copy of the file (Art. 95, §2, 3° LCA), which was transmitted to it on March 22, 2023. It stated that it accepts to receive all communications related to the case electronically, except for key documents in the case, and in particular those that trigger deadlines, which it also requests to receive by mail.

10. On April 24, 2023, the defendant sent its response by letter to the Contentious Chamber as well as to the complainant.

11. On October 4, 2023, the Contentious Chamber adopted decision No. 138/2023 of dismissal pursuant to Article 95, § 1, 3° of the LCA. In this decision, the Contentious Chamber decides:

- To dismiss the four complaints regarding the disputed URLs numbers 1.1, 1.6, 2.2, 2.5, 2.7, 2.16, 2.18, 2.19, 3.2, 3.4, 3.8, 3.15, 3.16, 3.18 on the grounds that they do not contain any personal data of the complainant.
- To dismiss the four complaints for technical reasons regarding the other URLs since the complainant

wrongly invokes a breach of Article 17 of the GDPR against the defendant.

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12. On October 30, 2023, the complainant, through its counsel, requested that the file be processed on the merits, in accordance with the possibility granted to it in the decision and in accordance with Articles 98 et seq. of the law of December 3, 2017 establishing the Data Protection Authority.

13. On December 1, 2023, the Contentious Chamber decided, pursuant to Article 95, § 1, 1° and Article 98 of the LCA, that the file can be processed on the merits.

14. On December 1, 2023, the concerned parties were informed by registered mail of the provisions as set out in Article 95, § 2 as well as Article 98 of the LCA. They were also informed, pursuant to Article 99 of the LCA, of the deadlines for submitting their conclusions. The deadline for receiving the complainant's reply conclusions was set for January 12, 2024, and for the defendant's summary conclusions for February 5, 2024.

15. On December 4, 2023, the complainant agreed to receive all communications related to the case electronically in accordance with Article 98 of the LCA.

16. On December 4, 2023, the complainant requested a copy of the file (Art. 95, §2, 3° LCA), which was transmitted to it on December 11, 2023.

17. On December 13, 2023, the defendant requested a copy of the file (Art. 95, §2, 3° LCA), which was transmitted to it on December 20, 2023. It stated that it accepts to receive all communications related to the case electronically, except for key documents in the case, and in particular those that trigger deadlines, which it also requests to receive by mail. The defendant expressed its intention to avail itself of the opportunity to be heard in accordance with Article 98 of the LCA.

18. On December 13 and 14, 2023, the defendant and the complainant respectively requested an extension of the deadlines for submitting their conclusions.

19. On December 20, 2023, the concerned parties were informed by registered mail of the new deadlines for submitting their conclusions. The deadline for receiving the complainant's reply conclusions was set for January 22, 2024, and for the defendant's summary conclusions for March 5, 2024.

The complainant's conclusions

20. On January 22, 2024, the Contentious Chamber received the reply conclusions from the complainant. The complainant's arguments can be summarized as follows.

21. As a primary request, the complainant seeks that the Contentious Chamber orders the defendant to proceed with the delisting of the disputed URLs. The complainant adds to its request the following URL, [...], which has not been examined by the Contentious Chamber, whereas

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this URL was included in a complaint that the Contentious Chamber acknowledged receipt of on July 15, 2021 (hereinafter referred to as "the new disputed URL"). The complainant contests the applicability of Article 17.3 of the GDPR, arguing that, in this particular context, the right to respect for his private life should prevail over the freedom of expression and information of internet users, for the following reasons.

22. The complainant believes that he no longer plays any role in public life for several years. This is because, as a Belgian citizen aged [...] years and retired, he has not held the position of managing director on behalf of Z since [...] and has no intention of resuming professional activity. The complainant adds that he does not understand how one can consider that he still occupies a place in public life when – by way of comparison – the law of September 18, 2017, relating to the prevention of money laundering and the financing of terrorism and to the limitation of the use of cash, notably provides, in its Article 41 § 3, that a politically exposed person loses this status twelve months after the cessation of their functions.

23. The complainant further argues that the information included in the disputed content is inaccurate and outdated. He claims that this information generally consists of a series of unproven allegations. According to him, the disputed content does not come from reliable journalistic sources or from a free and independent press, and the Contentious Chamber must take into account the phenomenon of

"fake news." He adds that the allegations present in this content were made in the context of economic competition related to the awarding of public contracts, and that it is not uncommon for competitors to pay journalists to disseminate defamatory information. The complainant asserts that he has never been prosecuted for these allegations and produces certificates issued in 2020, which would demonstrate that no criminal proceedings have been initiated against him or against Z in [...], in [...] and in [...]. The complainant also argues that the allegations against him mainly concern offenses that the penal code considers to be time-barred after a period of 5 years. Consequently, he believes that this information holds no interest for internet users, since the allegations concern facts prior to 2019 and can therefore no longer serve as a basis for initiating legal proceedings. The complainant considers that the only relevant element to take into account is the statute of limitations, insofar as only the maintenance of the democratic rule of law and the defense of the public interest are ensured by the public prosecutor in the context of legal proceedings.

The complainant specifically refers, in his conclusions dated January 22, 2024, to Article 504bis and Article 505 of the Penal Code, relating respectively to corruption and money laundering, as well as Article 21 of the Code of Criminal Procedure concerning the five-year statute of limitations.

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24. Finally, the complainant argues that the disputed content contains sensitive data. He specifies that several of the URLs in question disseminate a photo of his diplomatic passport [...], which expired in 2016, as well as information related to his ethnic origin and the identity of his wife. According to the complainant, the copy of his passport constitutes biometric data within the meaning of Article 4.14 of the GDPR. The complainant contests the relevance of the disclosure of this information in light of the purpose of processing for journalistic purposes.

The Defendant's Conclusions

25. On March 5, 2024, the Contentious Chamber received the summary conclusions from the defendant. The defendant's arguments can be summarized as follows.

26. As the first main argument, the defendant requests that the four complaints be dismissed or that a non-suit be pronounced, given that the complainant does not present factual and/or legal arguments that could lead to a decision different from Decision 138/2023, which preceded the substantive handling of the case adopted by the Contentious Chamber. According to the defendant, the arguments presented in the complainant's main conclusions dated January 22, 2024, are not new and have already been duly considered and contradicted by the Contentious Chamber in the aforementioned decision, such that they cannot justify a different decision.

27. As the second main argument, the defendant requests the exclusion of the new disputed URL from the proceedings or that the complainant's request regarding it be rejected or declared moot. The defendant believes that this URL is not part of the ongoing procedure, as the defendant was not informed of its existence or content by the Contentious Chamber, which did not include it with the four other existing complaints, and did not ask the defendant to position itself regarding this fifth complaint or the new URL. Alternatively, the defendant requests that the complainant's request regarding the new disputed URL be dismissed, as the complainant did not previously request the defendant to delist the new disputed URL, which constitutes a reason for dismissal. The defendant claims to have been informed only informally through the complainant's main conclusions of January 22, 2024. Additionally, the defendant requests that the Contentious Chamber not order the delisting, for the reasons outlined in its letter to the complainant dated February 21, 2024, and in its fourth argument (point 29).

28. As the third argument advanced as a subsidiary, the defendant requests that the four complaints be dismissed or that a non-suit be pronounced regarding the disputed URLs 1.1, 1.6, 2.2, 2.5, 2.7, 2.16, 2.18, 2.19, 3.2, 3.4, 3.8, 3.15, 3.16, and 3.18, as the complainant's request is moot regarding them or manifestly unfounded. The defendant believes that it cannot be compelled to proceed with a delisting of these URLs, as they no longer contain personal data related to the complainant, either because a delisting has already occurred (URL 3.2), or because some URLs are no longer accessible, the link is no longer valid, or this link has disappeared (URLs 1.1, 2.5, 2.7, 2.16, 2.18, 2.19, 3.2, 3.4,

3.8, 3.15, 3.16, and 3.18), or because they no longer appear in Google search results after a search based on the complainant's name (URLs 1.6 and 2.2).

29. As the fourth argument advanced as a subsidiary, the defendant requests that the four complaints be dismissed concerning all disputed URLs other than the disputed URLs numbered 1.1, 1.6, 2.2, 2.5, 2.7, 2.16, 2.18, 2.19, 3.2, 3.4, 3.8, 3.15, 3.16, and 3.18, on the grounds that the complainant wrongly invokes a breach of Article 17 of the GDPR regarding these URLs. The defendant believes that the interference with the complainant's fundamental rights is, in this case, justified and proportionate by a strictly necessary public interest in transmitting and receiving the information in question, considering in particular the following elements:

- The complainant is a public figure and plays an important role in public life;
- The URLs concern the complainant's professional life;
- The disputed content pertains to matters of general interest;
- The defendant has requested further clarifications but has not received a satisfactory response;
- The defendant is unable to conclude the inaccuracy of the disputed content;
- The disputed content is recent and current.

30. In response to the complainant's arguments in his main conclusions of January 22, 2024, the defendant essentially argues that the complainant has undeniably played and continues to play a role in public life, that the information contained in the disputed content is neither manifestly inaccurate nor outdated, and that this content does not contain sensitive data, and even if it did (which is not the case), it would not undermine the validity of the defendant's refusal to delist.

4 The defendant specifies that it has examined the complainant's request for delisting for each specific URL and presents in its conclusions a general analysis of the relevant criteria that led to its decision to refuse the delisting requests.

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31.

As a fifth argument raised in the alternative, the defendant requests that, if the Contentious Chamber were to consider the plaintiff's request to be founded or partially founded, it should only impose on the defendant to proceed with the delisting within the precise limits as follows:

- Be geographically limited;
- Be materially limited to only the searches conducted from the name of the plaintiff;
- Be materially limited to only the disputed URLs for which delisting is deemed strictly necessary by the Contentious Chamber, excluding URLs for which delisting is therefore not strictly necessary (to avoid any ambiguity, the defendant specifies that this would require, if necessary, a URL-by-URL analysis);
- Allocate to the defendant a reasonable time frame to proceed with the delisting, given the number of URLs to be delisted;
- Exclude any penalty.

32.

Finally, as a sixth argument raised even more in the alternative, the defendant believes that it has fully complied with the provisions of the GDPR and requests that no sanction be imposed on it in this case, other than a possible order for delisting within the limits outlined in the fifth argument. The defendant believes that any disagreement by the Contentious Chamber with the result of the analysis conducted by the defendant would not indicate any fault on its part, but would at most reveal a reasonable difference of appreciation inherent in the case-by-case approach to the right to delisting. The defendant emphasizes that it has implemented considerable means to seriously address the immense quantity of delisting requests it receives on a daily basis.

33. On March 13, 2024, the plaintiff expresses his intention to avail himself of the possibility of being

heard in accordance with Article 98 of the LCA.

34. On October 18, 2024, the parties are informed that the hearing will take place on November 18, 2024.

35. On November 18, 2024, the parties are heard by the Contentious Chamber.

36. On November 22, 2024, the minutes of the hearing are submitted to the parties.

37.

On November 29, 2024, the Contentious Chamber received comments from the defendant and the plaintiff regarding the minutes, which it decides to include in the file as an annex to the minutes.

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II. Motivation

II.1. Regarding the review of the case by the Contentious Chamber

38. The main argument of the defendant is based on the fact that the plaintiff does not present any new factual and/or legal arguments that could lead to a different decision than that already adopted by the Contentious Chamber concluding to a dismissal of the four complaints under Article 95, § 1, 3° of the LCA and that it should not review the case and take another decision (point 26).

39. In its preliminary decision prior to the substantive treatment of the case No. 138/2023, the Contentious Chamber concluded to a dismissal of the four complaints under Article 95, § 1, 3° of the LCA and specified the following:

“(…) The plaintiff, if he disagrees with the content of this decision and believes that he can present factual and/or legal arguments that could lead to a different decision, may submit a request to the Contentious Chamber for substantive treatment of the case (…)”⁵.

40. The Contentious Chamber wishes to clarify that delisting requests invariably balance the right to data protection and the freedom of expression and information and thus constitute a complex exercise, as indicated by the Court of Justice of the European Union (hereinafter “CJEU”)⁶. In order to carry out this delicate balancing of competing interests, it is essential that the Contentious Chamber has the developed positions of the parties involved.

41.

In this case, within the framework of the so-called “light” procedure, or “preliminary procedure prior to substantive decision,” the defendant had the opportunity to express itself, at the request of the Contentious Chamber, through its letter of April 24, 2023. In this letter, it was able to detail the reasons why it considers that Article 17.3.a) of the GDPR applies to the URLs for which it refused delisting. However, in the context of this “light” procedure, the plaintiff did not have the opportunity to respond to these arguments. To ensure respect for the principle of adversarial proceedings, the plaintiff was informed in the decision of the possibility of submitting a request to the Contentious Chamber for substantive treatment of the case, which he did on October 30, 2023.

42.

Although the plaintiff's position had already been known to the Contentious Chamber, both in his requests to the defendant and in his complaints, the Contentious Chamber believes that the substantive treatment of the case undoubtedly allowed him to develop his arguments through his conclusions and allowed him to be heard during the hearing.

5 Contentious Chamber, Decision 138/2023 of October 4, 2023, point 70.

6 CJEU, judgment of December 8, 2022, C-460/20, ECLI:EU:C:2022:962, point 75.

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43. The Contentious Chamber cannot accept the defendant's argument requesting the dismissal of the complainant's complaints solely on the grounds that their arguments do not differ from those already raised at the preliminary stage of the proceedings concerning the merits of the case. Consequently, the Contentious Chamber has conducted a review of the case *ab initio*.

II.2. Regarding the URLs for which the complainant requests de-referencing

44. In his main conclusions dated January 22, 2024, the complainant requests the Contentious Chamber to take into account a new disputed URL that would also be included in a fifth complaint filed

by the complainant with the APD (point 21). He requests that this URL be added to the list of disputed URLs for which he seeks de-referencing, given that it is still active and referenced by the defendant. In this regard, the defendant requests the exclusion of this new URL from the discussions, arguing that it was not informed of the existence of this fifth complaint by the Contentious Chamber, and that it was not integrated prior to the ongoing proceedings (point 27).

45. The new disputed URL mentioned by the complainant is indeed included in a complaint registered under number DOS-2021-05175. This fifth complaint, filed on July 14, 2021, was declared admissible by the SPL and forwarded to the Contentious Chamber on August 17, 2021. It also concerns the de-referencing of the following links:

5.1.

[...]

5.2.

[...]

5.3.

[...]

5.4.

[...]

5.5.

[...]

5.6.

[...]

46. During the hearing, the defendant indicated that it accepted to include the new URL 5.1 in the discussions of the present case. It specified that, in this case, its initial letter dated February 21, 2024, should be considered as its preliminary analysis, and requested the Contentious Chamber to adopt the same measure for this URL as for the other disputed URLs, namely that they be dismissed or that the complainant's request be deemed unfounded for the reasons set out in the fourth plea of his conclusions (point 29).

47. The Contentious Chamber decides to join this fifth complaint, containing the new disputed URL, to the four other complaints grouped under file DOS-2020-04988. The Chamber considers that these five complaints are linked by such a close relationship that there is an interest in making a decision regarding them at the same time in order to ensure the consistency of its decisions. In other words, the objective of consistency that it pursues in handling the complaints submitted to it opposes their separate examination. Indeed, the Contentious Chamber notes, after examining the six URLs mentioned in this fifth complaint, that their content concerns the same theme as the 63 other disputed URLs initially included in the proceedings. More specifically, these URLs also relay allegations of corruption, money laundering, and other fraudulent practices targeting the complainant and/or the company Z that were published during the same period.

48. In the five complaints he filed with the APD, the complainant requests the de-referencing of a total of 69 URLs. The Contentious Chamber first notes that some URLs are identical and appear multiple times in the five complaints. Indeed, URLs 2.22, 2.27, 3.1 are identical, as are URLs 2.26, 2.28, 3.9, URLs 2.24, 2.29, 3.5, URLs 2.23, 2.30, 3.3, URLs 2.25, 2.31, 3.7, as well as URLs 1.2 and 5.2.

49. The Contentious Chamber also notes that several URLs provided in the different complaints are currently no longer accessible, that the link is no longer valid, or that it has disappeared. These are URLs 1.1, 2.5, 2.7, 2.16, 2.18, 2.19, 3.2, 3.4, 3.8, 3.15, 3.16, 3.18, and 5.3 (points 3 to 6 and 45).

50. In her conclusions dated March 5, 2024, under the third plea (point 28), the defendant also confirms that the first 12 URLs listed in point 49 are no longer accessible. She also adds that regarding URL 3.2, the defendant has taken manual measures to prevent its referencing from the complainant's name. She finally specifies that URLs 1.6 and 2.2 remain accessible, but that they do not appear in the defendant's search engine results when a search is conducted based on the complainant's name.

51. During the hearing, the complainant clarified his position regarding these URLs and confirmed that

he accepts that non-functional or inaccessible URLs be excluded from his request for de-referencing.
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II.3. Regarding the refusal to delist links by Google LLC

52. The complaint submitted for examination by the Contentious Chamber concerns the exercise by the complainant of their right to erasure. Their request pertains to links referenced in the results provided by the search engine "Google Search" when their name is entered as a search criterion.

53. It is necessary to assess the delisting requests made by the complainant in light of Article 17 of the GDPR, the criteria and rules established by the CJEU in its judgment *Google Spain*⁸, the guidelines of the Article 29 Working Party related to this judgment (hereinafter the guidelines of Group 299), the teachings from the CJEU judgment in the case *GC and others v. CNIL* of September 24, 2019¹⁰, and the Guidelines 5/2019¹¹ on the criteria for the right to be forgotten under the GDPR in the context of search engines by the EDPB (hereinafter the EDPB guidelines), in order to ensure a fair balance between, on the one hand, the fundamental rights to respect for private life and to the protection of personal data, enshrined in Articles 7 and 8 of the Charter of Fundamental Rights of the EU, and, on the other hand, the fundamental right to freedom of information for internet users, guaranteed by Article 11 of the Charter. In the pursuit of this fair balance, various criteria will be taken into account, which will be analyzed below. This right to erasure aims to protect the data subject against processing that would not be or is no longer legitimate.

54. It should be noted at the outset that while an infringement of privacy caused by referencing can be amplified due to the essential role of search engines in accessing information via the Internet, similarly and for the same reason, a delisting can impact the freedom of information of internet users. A balance between interests must therefore necessarily be struck.

55. In its judgment *GC and others v. CNIL*, the CJEU specifies in this regard the following:

"In any event, the operator of a search engine, when faced with a request for delisting, must verify, under the important public interest grounds referred to in Article 8(4) of Directive 95/46/EC or Article 9(2)(g) of Regulation 2016/679 and in compliance with the conditions laid down in those provisions, whether the inclusion of the link to the web page in

⁸ CJEU, judgment of May 13, 2014, C-131/12, ECLI:EU:C:2014:317.

⁹ Article 29 Working Party, Guidelines on the implementation of the judgment of the Court of Justice of the European Union in the case *Google Spain and Inc./Agencia española de protección de datos (AEPD) and Mario Costeja González* (C-131/12, adopted on November 26, 2014, available here: <https://ec.europa.eu/newsroom/article29/items/667236/en>

¹⁰ CJEU, judgment of September 24, 2019, C-507/17, ECLI:EU:C:2019:772.

¹¹ European Data Protection Board (EDPB), Guidelines 05/2019 on the criteria for the right to be forgotten under the GDPR in the case of search engines, version 2.0 of July 7, 2020. <https://edpb.europa.eu/our-work-tools/our-documents/guidelines/guidelines-52019-criteria-right-be-forgotten-search-engines-fr>

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The question in the list displayed following a search conducted using the name of the concerned individual is necessary for the exercise of the right to freedom of information of internet users who may be interested in accessing this web page through such a search, protected by Article 11 of the Charter. While the rights of the concerned individual protected by Articles 7 and 8 of the Charter generally prevail over the freedom of information of internet users, this balance may, however, depend, in particular cases, on the nature of the information in question and its sensitivity to the privacy of the concerned individual, as well as the public interest in having access to this information, which may vary, notably depending on the role played by this individual in public life (the Contentious Chamber emphasizes)¹².

56. The Article 29 Working Party also explains that:

"These criteria aim to assess whether the information contained in a search result is relevant in light of the public interest in accessing this information. Relevance is also closely linked to the age of the data. Depending on the facts of the case, information published a long time ago, for example, 15 years ago,

may prove to be less relevant than information published a year ago. The data protection authorities will assess its relevance in light of the parameters specified below.

A. Do the data concern the professional life of the concerned individual?

When examining the request for de-referencing, the data protection authorities must first distinguish between private life and professional life. Data protection – and more broadly, privacy legislation – primarily aims to guarantee the fundamental right of individuals to respect for their private life (and data protection)¹³.

57. In this case, based on the relevant criteria to be considered according to the case law of the CJEU and the European Court of Human Rights (hereinafter "ECHR"), and in support of all the elements presented to it, the Contentious Chamber argues that, in this instance, the result of the balance of interests to be struck, pursuant to Article 17.3. a) of the GDPR, between the right to data protection, on the one hand, and the right to freedom of information, on the other hand, leans in favor of freedom of expression and information, as well as the maintenance, via the search engine, of the accessibility of the said information. The Contentious Chamber indeed considers that the indexing by the defendant of the disputed URLs is necessary for the exercise of the right to freedom of information of internet users for the reasons set out below (points 58 to 92).

II.3.1. The role played by the complainant in public life

58. Following the opinion of the CJEU and the guidelines of the EDPB, the Contentious Chamber considers that the quality of being a person who plays or does not play a role in public life is a decisive element for balancing the right to private life and the right to public information. Indeed, according to the EDPB, which reiterates the words of the CJEU: "The Court has also considered that the rights of the concerned individual generally prevail over the interest of internet users in accessing information through the search engine provider. However, it has identified several factors that may influence this balancing, including the nature or sensitivity of the information, and in particular the interest of internet users in having access to this information, which may depend on the role played by the concerned individual in public life (the Contentious Chamber emphasizes)"¹⁴.

59. The life of a person playing a role in public life is, by its very nature, of greater interest to the right to public information, and this person must demonstrate a higher degree of tolerance, as they are inevitably and knowingly exposed to public scrutiny¹⁵.

60. In order to determine whether a concerned individual meets this criterion, it is appropriate to refer to the clarifications provided by the Guidelines of the Article 29 Working Party, as well as by case law. According to these guidelines, the Article 29 Working Party states: "It is not possible to definitively establish the type of role in public life that a natural person must play to justify public access to information about that person through an internet search. However, by way of example, politicians, high-ranking officials, business people (the Contentious Chamber emphasizes), and members of regulated professions can generally be considered to play a role in public life. There are...

14 European Data Protection Board (EDPB), Guidelines 05/2019 on the criteria for the right to be forgotten under the GDPR in the case of search engines, version 2.0, July 7, 2020. <https://edpb.europa.eu/our-work-tools/our-documents/guidelines/guidelines-52019-criteria-right-be-forgotten-search-engines-fr>

15 CJEU, judgment of December 8, 2022, paragraph 63 and ECHR, judgment of October 6, 2022, Khural and Zeynalov v. Azerbaijan, CE:ECHR:2022:1006JUD005506911, § 41 and cited case law. Decision on the Merits 170/2024 – 18/30

reasons for allowing the public to seek information regarding the role and activities of these individuals in public life.

61. The Brussels Court of Appeal has considered that a businessman, holding executive positions in various Belgian or African companies, particularly active in the transport sector which is not particularly media-covered, but who, among other elements, participated in the marriage of a well-known couple and has several websites, is a public figure.

62. In this case, it appears from the disputed URLs and the information provided by the complainant that he is a Belgian businessman, founder of company Z, which he led as CEO for nearly [...] years. This company specializes in the production of [products] in more than [...] countries. In the course of his duties, the complainant has been in contact with leading national authorities, including former presidents of [...] (URLs 1.2, 2.17, 4.6, among others). In Belgium, he is also said to have had connections with former Senator Mr. Z1 (URLs 1.6 and 2.8 in particular). Furthermore, several articles mention that he may have held diplomatic positions for the [...] (URL 1.6 in particular), where he may have been appointed [...] (URL 2.23 in particular).

63. Moreover, the fact that such a large number of articles referencing the complainant have been written over a period of a few years from a wide range of different sources is one element among others that indicates he was a public figure at that time.

64. In light of the above, the Contentious Chamber considers that the complainant has undeniably played a role in public life in the past within the meaning of the Guidelines of the Article 29 Working Party and the aforementioned case law. The complainant does not contest this finding, but argues instead that he no longer plays any role in public life, being now retired, no longer holding the position of managing director for company Z for [a few years], and having no intention of resuming professional activity (point 22).

65. As noted by the Article 29 Working Party in its aforementioned guidelines, "information is more likely to be relevant if it relates to the current professional life of the individual concerned, but this will depend greatly on the nature of that person's work and the legitimate interest of the public in accessing this information through a search of their name (the Contentious Chamber emphasizes)."

16 Article 29 Working Party, op. cit., pp. 15 to 16.

17 Brussels, October 15, 2021, Google Belgium and Google LLC v. X, 2011/AR/556, points 20 et seq.

18 Article 29 Working Party, op. cit., p. 19.

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66. Furthermore, it is important to emphasize that a person who has played a role in public life does not generally disappear from the public sphere immediately when they cease the activities that conferred their notoriety. In this regard, reference should be made to the judgment in *Hurbain v. Belgium* by the European Court of Human Rights, which specifies that: "The notoriety of the person concerned must be examined in light of the circumstances of the case and at the time when the request regarding the 'right to be forgotten' is made. It may be prior to or concurrent with the facts referred to by the disputed information. Furthermore, while a person's notoriety may decline over time, it may also experience a resurgence at a later date for various reasons. Moreover, the behavior of the person concerned since the events that are the subject of the first publication may, in certain situations, justify a refusal to apply a 'right to be forgotten.' On the other hand, a person's withdrawal from the media is an element that may argue in favor of the protection of their reputation (the Contentious Chamber emphasizes)."

67. In this case, the Contentious Chamber considers that the complainant cannot claim to have completely disappeared from the public sphere at the time he left his position at Z, only [a few years] ago, and still retains a certain notoriety due to his past roles. This is particularly explained by the relatively short time that has elapsed since the publication of the disputed content, the last referenced article having been published online in 2021 (points 81 to 83).

68. Moreover, the Contentious Chamber cannot consider that the complainant has definitively distanced himself from the business world, as he claims. In fact, he continues to hold a notable role, if only symbolic, with company Z, of which he remains the founder, spokesperson, and shareholder. Furthermore, during his hearing, the complainant also acknowledged that he still holds at least one active role as a director in a company [...]. Finally, the Contentious Chamber also takes into account his behavior towards the media in its assessment, as the complainant has continued to grant interviews to the press recently.

69. Furthermore, the Contentious Chamber cannot agree with the comparison made by the complainant between the notion of a personality playing a role in public life and that of a politically exposed person (point 22). Firstly, contrary to what the complainant asserts, Article 41, § 3, of the law of September 18, 2017, does not stipulate that a politically exposed person loses this status twelve months after the cessation of their functions, but only refers to a period of monitoring the risk that this person...

19 European Court of Human Rights, Grand Chamber, judgment of July 4, 2023, application 57292/16, *Hurbain v. Belgium*, points 227 to 228.

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could still present. 20. Furthermore, the notion of politically exposed person is distinct and is only relevant within the framework of the law of September 18, 2017.

70. In support of these considerations, the Contentious Chamber is of the opinion that at the time of the facts, the complainant undoubtedly played and still plays a role in public life.

II.3.2. The contentious content relates to the professional activities of the complainant and notably recounts legal proceedings for serious offenses, constituting subjects of general interest that remain current.

i. The contentious content relates to the professional activities of the complainant

71. The Contentious Chamber notes that all the contentious content pertains to the professional activities of the complainant as a manager of Z and other companies. None of the publications aim to disclose the private life and intimacy of the complainant. The contentious content also concerns legal proceedings related to the professional activities of the complainant.

72. However, the complainant argues that some of the contentious content contains sensitive data and must therefore be delisted (point 24). The sensitivity of the data is an aspect that must be taken into account in the assessment of delisting requests. In this regard, in its judgment *GC and others v. CNIL*, the CJEU specifies the following:

“When the operator of a search engine is presented with a delisting request concerning a link to a webpage on which such sensitive data is published, that operator must, based on all relevant elements of the specific case and taking into account the seriousness of the interference with the fundamental rights of the person concerned to respect for private life and the protection of personal data, verify whether the inclusion of this link in the list of results, which is displayed following a search carried out using that person's name, is strictly necessary to protect the freedom of information of internet users who may be interested in accessing that webpage through such a search.”

20 Article 41 § 3 of the law of September 18, 2017, on the prevention of money laundering and terrorist financing and on the limitation of the use of cash: “When a politically exposed person has ceased to hold a prominent public function on behalf of a Member State or a third country or on behalf of an international organization, the obliged entities shall take into account, for at least twelve months, the risk that this person continues to present and shall apply appropriate measures, based on the assessment of this risk, until they no longer present a risk specific to politically exposed persons.”

21 CJEU, judgment of September 24, 2019, *GC et al. (Delisting of sensitive data)*, C-136/17, EU:C:2019:773, paragraph 68.

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73. The Dispute Chamber also recalls that, although the processing of special categories of data mentioned in Article 9.1 of the GDPR is generally prohibited, paragraph 2 of the same article nevertheless provides exceptions to this prohibition, such as when the data subject has, in a clear and explicit positive act, made the data in question publicly accessible.

74. In this case, contrary to the complainant's assertion, the publication in certain press articles of a photo of his expired diplomatic passport does not constitute the processing of biometric data. The Dispute Chamber recalls that, in accordance with Articles 4.14), 9.1, and Recital 51 of the GDPR, only

data processed by specific technical means for the purpose of uniquely identifying a natural person falls within the definition of biometric data, so that the processing of photographs should not be systematically considered as processing of special categories of data. Furthermore, the mention of his spouse's name does not constitute processing of special categories of data either.

75. Moreover, the complainant believes that the mention of the aforementioned information, as well as his origin, in certain disputed articles is of no relevance to internet users. In this regard, it is important to distinguish the respective roles and responsibilities of the press publisher and the search engine. The press publisher, faced with a request for deletion, will be able to remove certain data from the disputed articles if it cannot invoke the journalistic exception and its legitimate interest in processing this information. As for the search engine, it can only intervene in the indexing of the relevant articles. In this case, and regarding the defendant, the Dispute Chamber cannot consider that the presence of this information, mentioned marginally in certain disputed press articles, justifies the complete de-referencing of the relevant articles. Such a measure would be disproportionate, especially since there are less intrusive alternatives to the freedom of information of internet users, notably by directly addressing the publisher of the content in question.

ii. The disputed content relates to the general interest

76. The aforementioned judgment of the European Court of Human Rights defines what may fall under the general interest as follows: "Issues that concern the public to such an extent that it can legitimately take an interest in them, that awaken its attention or significantly concern it, particularly because they relate to the well-being of citizens or the life of the community. This is also the case for issues that are likely to create strong controversy, which relate to a social theme."

22 See in this sense Article 9.2.e) of the GDPR and the judgment of the CJEU of October 4, 2024, C-446/21, ECLI:EU:C:2024:834.

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important, or related to an issue of public interest. However, public interest does not equate to the expectations of an audience eager for details about the private lives of others, nor with readers' taste for sensationalism or, at times, voyeurism (the Contentious Chamber emphasizes) »23.

77. In this case, the contested content all relates to facts concerning the activities of the complainant, Z, and their relationships with several governments, notably the [...] and the [...], as well as several scandals.

78. The contested URLs report possible illegal practices in the awarding of public contracts for the production of [products] in these countries. Numerous articles denounce the high cost of the system established by Z. Some articles add that this would involve significant embezzlement benefiting the entourage of the former president of [...] and to the detriment of the population. The cost of [products] is also a point that is criticized repeatedly in the content. These issues are undoubtedly a matter of general interest and democratic debate (URLs 1.3, 1.4, 2.1, 2.4, 2.9, 2.23, 3.19, 4.1). Several URLs also report fraudulent practices in the awarding of [...], in which the complainant would be involved. Several URLs show photos of the [...] (URLs 1.4, 2.8, 2.10).

79. According to the contested content, the complainant has been or would have been the subject of investigations by public authorities in Belgium, in [...] and [...]. Some URLs mention an investigation in Belgium as well as searches conducted at Z's headquarters (URLs 2.6, 2.7, 2.24, 2.29, 3.5). [...], the complainant would also have been targeted by a complaint filed by 21 citizens [...] before the commercial court of [...] (URLs 2.25, 2.31). Other URLs report that a parliamentary inquiry commission would have been opened in [...] (URL 2.25).

80. The information reported in the contested content, detailing significant scandals occurring in several countries, including Belgium, undeniably holds major general interest. The Brussels Court of Appeal reached a similar conclusion in its aforementioned ruling, as it had stated that "it is indisputable that the conflicts in the [X] region ongoing for decades and the specific question of the links that the political and economic worlds may maintain there, as well as that of the exploitation of the natural resources of [X], constitute a subject of debate (the Contentious Chamber emphasizes) »24.

23 ECtHR, Grand Chamber, judgment of July 4, 2023, application 57292/16, *Hurbain v. Belgium*, paragraph 223 and cited case law.

24 Brussels, October 15, 2021, *Google Belgium and Google LLC v. X*, 2011/AR/556, pp. 20-21 (free translation).

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iii.

The disputed content as well as the facts it relates to remain recent

81.

The Contentious Chamber notes that the disputed content was published between 2017 and 2021 and relates to facts that occurred a few years prior. The Contentious Chamber does not dispute that the prior nature of the facts and the date of publication is a criterion to be considered and must be assessed according to the specific circumstances of each request (guidelines of the Article 29 Working Party mentioned in point 56). In this case, given a publication period that does not exceed 8 years and sometimes only reaches 4 years, the relevance of the accessibility of the information conveyed by the disputed articles remains. The Contentious Chamber recalls in this regard that, in the *Google Spain* ruling by the CJEU, 16 years had elapsed between the publication of the disputed content and the Court's ruling. For the *Google v. CNIL* ruling, the time elapsed between the publication of the content and the adoption of the ruling by the Court varied between 22 and 6 years. In its decision 38/2022, the Contentious Chamber had considered that publications dating "around ten years or at least 7 or 8 years" were not, given the still current relevance of the information, a sufficiently long period to warrant delisting.

82.

The complainant, however, argues that the allegations against him primarily concern offenses that are time-barred after a period of five years, such that the disputed facts can no longer serve as a basis for initiating legal proceedings, rendering access to this information of no interest to the public (point 23). First, as outlined below, the complainant ultimately admitted at the hearing that there was indeed an ongoing judicial procedure against him in Belgium (point 89). Furthermore, although the limitation period may be taken into account to assess the relevance of the referenced information, as it reflects the passage of time, it certainly does not constitute the only criterion, as claimed by the complainant. It must be examined in light of other criteria highlighted notably by the CJEU, the Article 29 Working Party, and the EDPB in the context of evaluating delisting requests. Thus, a criminal limitation period does not necessarily correspond to the period after which the information becomes outdated and irrelevant for internet users. Moreover, it is neither the responsibility of the Contentious Chamber nor the defendant to classify the facts criminally or to calculate the limitation period, which may be interrupted by acts of which the Contentious Chamber may not be aware.

83.

Finally, given that the judicial procedure is clearly still ongoing in Belgium, even if the complainant indicates that the investigation has not seen any real progress since...

25 Contentious Chamber, Decision on the Merits 38/2022, of March 17, 2022, point 106. The third bullet point of the *dispositif* of this decision was annulled by the Market Court in that the Contentious Chamber reprimanded Google Belgium (ruling 2022/AR/483 & 484 of October 26, 2022).

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2016, it should be emphasized that the interest in information may evolve over time. In this regard, it is relevant to refer to the aforementioned ruling of the European Court of Human Rights, which states: "the contribution of an article to the public interest debate may persist over time, either due to the information itself or new elements that have arisen since publication, such as subsequent developments in the initial judicial proceedings (the Contentious Chamber emphasizes)."

II.3.3. Regarding the Accuracy of the Disputed Content

84. The question of the accuracy of the disputed content referenced is also an important element to consider in the assessment of the conditions for application provided for in Article 17.3.a) of the GDPR,

in order to evaluate whether the right to information of internet users and the freedom of expression of the content provider can prevail over the rights of the applicant for de-referencing. Indeed, if the referenced content is found to be predominantly inaccurate, the right to inform and the right to be informed cannot prevail.

85. It should be noted that the CJEU specifies in its ruling TU and RE v. Google LLC what is expected from the person requesting de-referencing due to the inaccuracy of referenced content: "It is for this person to establish the manifest inaccuracy of the information contained in that content or, at the very least, of a part of that information that does not present a minor character in relation to the entirety of that content. However, in order to avoid placing an excessive burden on this person that could undermine the effective exercise of the right to de-referencing, it is only incumbent upon them to provide the evidence that can reasonably be required of them, taking into account the circumstances of the specific case, to establish this manifest inaccuracy (the Contentious Chamber emphasizes)."

86. In this ruling, the CJEU also clarifies the obligations and responsibilities incumbent upon the operator of a search engine. The Court ruled that, when the inaccuracy does not appear manifestly in light of the evidence provided by the concerned person, the search engine operator cannot be required to take on an active role. It specifies the following: "the operator of the relevant search engine cannot be imposed an obligation to investigate the facts and, for this purpose, to organize an exchange."

26 European Court of Human Rights, Grand Chamber, judgment of July 4, 2023, application 57292/16, Hurbain v. Belgium, paragraph 223 and cited case law.

27 CJEU (Grand Chamber), judgment of December 8, 2022, TU, RE v. Google LLC, C-460/20, ECLI:EU:C:2022:962, paragraph 68.

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contradictory with the content provider aimed at obtaining missing elements regarding the accuracy of the referenced content. Indeed, in that it would compel the search engine operator to contribute to establishing the accuracy or inaccuracy of the referenced content, such an obligation would impose a burden on this operator that exceeds what can reasonably be expected of it in light of its responsibilities, skills, and capabilities.

87. In this case, the complainant asserts that the disputed URLs convey unproven allegations that he deems inaccurate. According to him, these allegations do not come from reliable journalistic sources nor from a free and independent press, and would therefore fall under "fake news," caused by the media harassment of which he claims to be a victim. He essentially considers that these allegations are situated within a context of economic competition related to the awarding of public contracts, and that it is not uncommon for competitors to pay journalists to disseminate defamatory information (point 23).

88. In this regard, the Contentious Chamber finds that the complainant has not provided convincing evidence to establish the manifest inaccuracy of the information. The complainant has presented no element capable of undermining the credibility of the disputed content, and the Contentious Chamber considers, on the contrary, that they originate from reliable journalistic sources and have been treated for journalistic purposes. The Contentious Chamber indeed notes that the complainant's request for removal is directed at the referencing of press articles from publishers, most of which are recognized globally (URLs 2.9, 2.14, 2.23, 2.30, 3.2, 3.3), or nationally (URLs 1.6, 2.11, 2.12, 2.15, 2.19, 2.21, 2.24, 2.25, 2.29, 2.31, 3.5, 3.6, 3.7, 3.10, 3.12, 3.14, 4.1) whose professionalism is not in question. The fact that other articles or links are referenced from sources that may not necessarily be known to the Contentious Chamber does not undermine this finding, as long as these articles or links report information similar to that found in articles from recognized press publishers. The Contentious Chamber particularly takes into account the fact that several of the disputed URLs refer to investigative reports conducted by two reputable journalists working for a renowned news agency.

89. The complainant also claims to have never been prosecuted for the allegations disseminated by the disputed URLs and produces attestations issued in 2020, which would demonstrate that no criminal proceedings have been initiated against him or against Z in [...], in [...] and in [...]. However, the Contentious Chamber notes that these attestations are not relevant in this case, particularly as

they concern territories other than those related to the disputed content, namely Belgium, [...], and [...]. Furthermore, the Chamber

28 CJEU (Grand Chamber), judgment of December 8, 2022, TU, RE v. Google LLC, C-460/20, ECLI:EU:C:2022:962, point 71.

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The Contentious Chamber cannot ignore that, during the hearing, the complainant admitted that a judicial investigation had been opened against him in Belgium, following an anonymous report in 2016.

90. The Contentious Chamber has no reason to consider that the allegations in question are not seriously established in accordance with the ethical obligations of journalists, particularly since they are based on a set of proven and undisputed facts by the complainant, such as the various positions he has held and his relationships with high-ranking personalities from several countries.

91. Furthermore, the fact that allegations have not yet been confirmed by a court does not necessarily render them inaccurate, contrary to what the complainant asserts. To claim otherwise would deprive the press of its ability to address numerous issues and would constitute a disproportionate hindrance to freedom of expression and information. In this regard, the Contentious Chamber wishes to emphasize the essential role of the press, which primarily serves as a vehicle for disseminating debates of general interest, but also fulfills a secondary role of revealing and bringing to the public's attention information likely to generate interest and foster such debate within society. Therefore, it is essential to exercise the utmost caution when considering restrictions that may deter citizens from participating in discussions on issues of legitimate general interest. Consequently, any measure that would limit public access to this information – which the public has the right to receive – must be justified by particularly compelling reasons.

92. Based on the above elements, the Contentious Chamber decides that it is not in a position to conclude that the contested content is manifestly inaccurate and considers, on the contrary, that the contested content originates from reliable journalistic sources and has been treated for journalistic purposes.

III. Regarding corrective measures and sanctions

93. Under Article 100.1 of the LCA, the Contentious Chamber has the power to:

- 1° dismiss the complaint;
- 2° order a dismissal;
- 3° pronounce a suspension of the ruling;
- 4° propose a settlement;
- 5° issue warnings or reprimands;
- 6° order compliance with the requests of the concerned person to exercise their rights;
- 7° order that the interested party be informed of the security issue;
- 8° order the freezing, limitation, or temporary or permanent prohibition of processing;
- 9° order compliance with processing requirements;
- 10° order the rectification, restriction, or deletion of data and notification of such to the data recipients;
- 11° order the withdrawal of the accreditation of certification bodies;
- 12° impose penalties;
- 13° impose administrative fines;
- 14° order the suspension of cross-border data flows to another State or an international organization;
- 15° forward the file to the public prosecutor of the Brussels Court, who will inform it of the follow-up given to the file;
- 16° decide on a case-by-case basis to publish its decisions on the website of the Data Protection Authority.

94. In the case of dismissal, the Contentious Chamber must justify its decision step by step:

- pronounce a technical dismissal if the file does not contain or does not contain sufficient elements likely to lead to a sanction or if it has a technical obstacle preventing it from making a decision;
- or pronounce an opportunistic dismissal if, despite the presence of elements likely to lead to a sanction, the continuation of the examination of the file does not seem appropriate given the priorities

of the DPA as specified and illustrated in the Contentious Chamber's Policy on Dismissal.

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95. In the event of a dismissal based on multiple grounds (namely technical and/or opportunistic dismissal), the grounds for dismissal must be addressed in order of importance.

96. The Contentious Chamber notes that the URLs identified in points 49 and 50 no longer contain any personal data concerning the complainant or are no longer currently processed by the defendant when the complainant's name is searched in the search engine. Consequently, the Contentious Chamber decides to dismiss the complaints regarding these URLs, considering that the request for de-referencing has become moot in relation to them.

97. Furthermore, regarding all other disputed URLs, the Contentious Chamber is of the opinion that, based on the balancing of all the preceding elements, the public still has a strictly necessary interest in accessing the disputed press articles. The seriousness of the allegations, their relatively recent nature, their relevance concerning the complainant's past professional activity, and the quality of the complainant—both today and even more so at the time of the events—as well as the general interest of the information reported by reliable sources in the disputed content are decisive in the Contentious Chamber's decision. The passage of time and the change in the complainant's professional activity do not dilute this interest to the point of justifying the de-referencing of the concerned articles. The referencing of the disputed content is thus deemed strictly necessary for freedom of expression and information in accordance with Article 17.3 of the GDPR.

98. The Contentious Chamber decides to dismiss the complaint regarding all these URLs on technical grounds, as the complainant incorrectly invokes a breach of Article 17 of the GDPR in relation to these URLs, claiming that the defendant refused to de-reference the disputed articles.

IV. Publication of the decision

99. Given the importance of transparency regarding the decision-making process of the Contentious Chamber, this decision is published on the website of the Data Protection Authority, with the removal of direct identification data of the complainant and the cited individuals, whether natural or legal, excluding the information filed with the registry of the Market Court in accordance with Article 1034quinquies of the Judicial Code, or via the e-Deposit information system of the Ministry of Justice (Article 32ter of the Judicial Code).

(signed) Hielke HIJMANS

President of the Contentious Chamber

The request, accompanied by its annex, is sent, in as many copies as there are parties involved, by registered letter to the clerk of the jurisdiction or filed with the registry.